

A window of opportunity has opened up with the Left parties allowing the Government to proceed with IAEA talks



TALKING HEADS: IAEA chief ElBaradei with India's Kakodkar; (right) the UPA-Left committee

under the civilian category and its inspectors will have access to these facilities to ensure that there is no diversion of atomic material for military application from these reactors. Under the Indo-US nuclear deal, the Government had agreed to put 14 of its 22 nuclear reactors under such safeguards in a phased manner.

India has signed similar safeguards agreements with IAEA in the past including the one for the Tarapur and Kudankulam reactors and so officials believe the process would not take more than a fortnight. The negotiations are not going to be complicated

as India is recognised as a responsible nuclear power and officials at IAEA are on the same page with India. The final safeguards agreement has to be approved by the 35-member IAEA board of governors.

India may request that while they would freeze the final text, the signing of the agreement would happen only once the other steps for operationalisation of the deal are complete which includes getting an exception from the Nuclear Suppliers Group (NSG), a group of 45 nations. That would possibly be a fig leaf for the Government to maintain that it has kept its commitment to the Left parties for not signing the agreement while proceeding with the next steps of the deal. After the IAEA agreement is finalised, though not necessarily signed, NSG is expected to convene a

special session to discuss making an exception to allow its members to trade in civilian nuclear energy with India. That exception is necessary because under NSG rules, member countries cannot conduct nuclear trade of any kind with nations that are non-signatories to the Nuclear Non-proliferation Treaty like India.

By then the ball would move to the US's court as it has to deliver the NSG approval by getting a meeting of the group convened and then getting the US Congress to approve the 123-bilateral agreement that the Bush administration has finalised with India. There may be some hiccups at NSG as some European countries and even China may pose questions on the deal once it is brought before the group for approval. In the US Congress too, some

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WHAT NEXT

IAEA SAFEGUARDS: India has begun negotiations with the International Atomic Energy Agency for specific safeguards for the nuclear reactors it designates as civilian.

NSG CLEARANCE: The 45-member Nuclear Suppliers Group would then convene a special session to get a consensus on allowing an exception clause in its rules to permit nuclear commerce with India.

US CONGRESS: After that, the 123 bilateral agreement with India has to be approved by the US Congress before the deal is operationalised.

Congressmen have been egged on by the non-proliferation lobby that has been working against the deal, so both sides realise that any further delay on the deal can be fatal. If all goes well, IAEA safeguards agreement is expected to be through by December, while NSG nod will only be possible early next year after the Christmas and the New Year breaks. The US will then place it for an approval before the Congress in March. Since there is a 90-day mandatory gap before the US Congress can actually put the deal for a final vote and if this schedule is followed, then the deal could be signed by August 2008. For the Government, there is a glimmer of hope that the much-hyped deal could finally go through. ■